

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

-----X
EDDY HENRIQUEZ and
ELANNY FLORES-VARGAS,

Plaintiff designates
New York County
As the place of trial

Plaintiffs,

The basis of the venue:
Situs of Incident

- against -

SUMMONS

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
"BARROWS" Tax Registry No. 951571 and POLICE
OFFICE "VILLANEUVA", Tax Registry No. 949947,

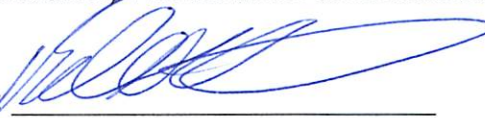
Defendants.

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
January 7, 2014

Yours, etc.,
KRIEGER, WILANSKY & HUPART, ESQS.

By: 

Brett R. Hupart, Esq.
Attorneys for Plaintiffs
5602 Broadway
Bronx, New York 10463
(718) 432-0500

TO: THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
100 Church Street, 4th Floor
New York, New York 10007

P.O. "BARROWS"
Tax Registry No. 951571
4295 Broadway
New York, New York 10033

P.O. "VILLANUEVA"
Tax Registry No. 949947
4295 Broadway
New York, New York 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
EDDY HENRIQUEZ and
ELANNY FLORES-VARGAS,

COMPLAINT

Plaintiffs,

- against -

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
“BARROWS” Tax Registry No. 951571 and POLICE
OFFICE “VILLANEUVA”, Tax Registry No. 949947,

Defendants.

-----X

Plaintiffs, by their attorneys, **KRIEGER, WILANSKY & HUPART, ESQS.**

complaining of the defendants, respectfully alleges upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times herein stated, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. Upon information and belief, that at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, its agents, servants and employees operated, maintained and controlled defendant, THE NEW YORK CITY POLICE DEPARTMENT, including all the police officers thereof.

3. At all times hereinafter mentioned, defendant POLICE OFFICER “BARROWS” Tax Registry No. 951571 was, and still is, an employee of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

4. At all times hereinafter mentioned, defendant POLICE OFFICER “BARROWS” Tax Registry No. 951571, was acting for, upon, in the course of, and in the furtherance of the business of his employer and within the scope of his employment.

5. At all times hereinafter mentioned, defendant POLICE OFFICER “VILLANEUVA”, Tax Registry No. 949947 was, and still is, an employee of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT

6. At all times hereinafter mentioned, defendant POLICE OFFICER “VILLANEUVA”, Tax Registry No. 949947, was acting for, upon, in the course of, and in the furtherance of the business of his employer and within the scope of his employment.

7. That notice of plaintiffs’ claim and intention to sue thereon and the time when and the place at which the alleged injuries were sustained, was duly served and filed by the plaintiffs with defendants on the 11th day of April 2013, by serving the said Notice of Claim on the Comptroller’s Office of the City of New York, within ninety days after the cause of action herein had accrued and before the commencement of this action; that the defendants have failed and refused to pay or adjust the said claim; that more than thirty days have elapsed since the service of the said claim; and that this action was commenced within one year after the cause of action accrued.

8. That the plaintiffs were never timely served with notice of a 50-h hearing.

9. On or about January 15, 2013, plaintiff, EDDY HENRIQUEZ, was falsely arrested and imprisoned by defendants, in the County, City and State of New York.

10. The said occurrence and the injuries resulting therefrom was caused wholly and solely through and by the intentional acts of the defendants.

11. That as a result of the aforesaid intentional acts of the defendants, the plaintiff, EDDY HENRIQUEZ, sustained loss of liberty, emotional harm and grievous injury to various parts of his body; that plaintiff, EDDY HENRIQUEZ, has suffered and will continue to suffer great pain and anguish of body and mind; that plaintiff, EDDY HENRIQUEZ, has necessarily received medical care and attention for a long period of time, by reason of the injuries sustained by him; that plaintiff, EDDY HENRIQUEZ, has, is and will continue to receive medical treatment and medicines for which expenses have, are and will continue to be incurred in an effort to cure and treat his said injuries; that plaintiff, EDDY HENRIQUEZ, has been rendered unable to attend to his usual activities as he had theretofore done, and his injuries are of a permanent, protracted and disabling nature.

12. That in consequence of the foregoing, the plaintiff, EDDY HENRIQUEZ, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A SECOND CAUSE OF ACTION

13. The plaintiff, ELANNY FLORES-VARGAS, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "12" as though fully set forth herein at length.

14. On or about January 15, 2013, plaintiff, ELANNY FLORES-VARGAS, was falsely arrested, imprisoned and issued a criminal ticket by defendants, in the County, City and State of New York.

15. The said occurrence and the injuries resulting therefrom was caused wholly and solely through and by the intentional acts of the defendants.

16. That as a result of the aforesaid intentional acts of the defendants, the plaintiff, ELANNY FLORES-VARGAS, sustained loss of liberty, emotional harm and grievous injury to various parts of her body; that plaintiff, ELANNY FLORES-VARGAS, has suffered and will continue to suffer great pain and anguish of body and mind; that plaintiff, ELANNY FLORES-VARGAS, has necessarily received medical care and attention for a long period of time, by reason of the injuries sustained by her; that plaintiff, ELANNY FLORES-VARGAS, has, is and will continue to receive medical treatment and medicines for which expenses have, are and will continue to be incurred in an effort to cure and treat her said injuries; that plaintiff, ELANNY FLORES-VARGAS, has been rendered unable to attend to her usual activities as she had theretofore done, and her injuries are of a permanent, protracted and disabling nature.

17. That in consequence of the foregoing, the plaintiff, ELANNY FLORES-VARGAS, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A THIRD CAUSE OF ACTION

18. The plaintiff, EDDY HENRIQUEZ, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "17" as though fully set forth herein at length.

19. The defendant THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, wholly failed to take any or sufficient steps whatsoever to protect plaintiff, EDDY HENRIQUEZ, from their employees, in that it carelessly, recklessly and negligently hired and retained incompetent personnel.

20. That THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and employees were negligent, careless and reckless in improper hiring; negligent deployment, negligent supervision, negligent training, retaining incompetent personnel, failing to follow Police Department rules, regulations and procedures and failure to control their agents, servants and/or employees.

21. That in consequence of the foregoing, the plaintiff, EDDY HENRIQUEZ, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A FOURTH CAUSE OF ACTION

22. The plaintiff, ELANNY FLORES-VARGAS, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "21" as though fully set forth herein at length.

23. The defendant THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, wholly failed to take any or sufficient steps whatsoever to protect plaintiff, ELANNY FLORES-VARGAS, from its employees, in that it carelessly, recklessly and negligently hired and retained incompetent personnel.

24. That THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, their agents, servants and employees were negligent, careless and reckless in improper hiring; negligent deployment, negligent supervision, negligent training, retaining incompetent personnel, failing to follow Police Department rules, regulations and procedures and failure to control their agents, servants and/or employees.

25. That in consequence of the foregoing, the plaintiff, ELANNY FLORES-VARGAS, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A FIFTH CAUSE OF ACTION

26. The plaintiff, EDDY HENRIQUEZ, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "25" as though fully set forth herein at length.

27. That on the said date, January 15, 2013, the defendants, acting jointly and severally, caused the plaintiff, EDDY HENRIQUEZ to be, maliciously, unlawfully, wrongfully and without any order, warrant or process of any court, and without any legal right, falsely arrested, falsely imprisoned, detained, handcuffed, incarcerated, restrained and deprived of his liberty.

28. That as a consequence of the wrongful acts of the defendants, the plaintiff, EDDY HENRIQUEZ, suffered damage in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A SIXTH CAUSE OF ACTION

29. The plaintiff, ELANNY FLORES-VARGAS, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "28" as though fully set forth herein at length.

30. That on the said date, January 15, 2013, the defendants, acting jointly and severally, caused the plaintiff, ELANNY FLORES-VARGAS to be, maliciously, unlawfully, wrongfully and without any order, warrant or process of any court, and

without any legal right, falsely imprisoned, detained, handcuffed, incarcerated, restrained and deprived of her liberty.

31. That as a consequence of the wrongful acts of the defendants, the plaintiff, ELANNY FLORES-VARGAS, suffered damage in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A SEVENTH CAUSE OF ACTION

32. The plaintiff, EDDY HENRIQUEZ, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "31" as though fully set forth herein at length.

33. That on the said date, January 15, 2013, the aforesaid defendants falsely, maliciously and without probable cause and provocation charged the plaintiff, EDDY HENRIQUEZ, with various crimes and caused a criminal proceeding to be commenced against him.

34. The commencement and prosecution of the criminal proceeding was malicious and began in malice and without probable cause by said defendants, acting jointly and severally, knowing that the proceeding should not have taken place.

35. That the criminal proceedings were terminated in plaintiff's EDDY HENRIQUEZ's favor.

36. That as a result of the malicious prosecution of the plaintiff, EDDY HENRIQUEZ, he was deprived of his liberty and was subjected to scorn and ridicule, suffered shock and embarrassment, deprived of his civil liberty, detained, falsely incarcerated, and caused to be degraded in the esteem of the community, his friends and

his peers, all to his damage in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A EIGHTH CAUSE OF ACTION

37. The plaintiff, ELANNY FLORES-VARGAS, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "36" as though fully set forth herein at length.

38. That on the said date, January 15, 2013, the aforesaid defendants falsely, maliciously and without probable cause and provocation charged the plaintiff, ELANNY FLORES-VARGAS, with various crimes and caused a criminal proceeding to be commenced against her.

39. The commencement and prosecution of the criminal proceeding was malicious and began in malice and without probable cause by said defendants, acting jointly and severally, knowing that the proceeding should not have taken place.

40. That the criminal proceeding were terminated in plaintiff's ELANNY FLORES-VARGAS's favor.

41. That as a result of the malicious prosecution of the plaintiff, ELANNY FLORES-VARGAS, she was deprived of her liberty and was subjected to scorn and ridicule, suffered shock and embarrassment, deprived of her civil liberty, detained, falsely incarcerated, and caused to be degraded in the esteem of the community, her friends and her peers, all to her damage in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR AN NINTH CAUSE OF ACTION

42. The plaintiff, EDDY HENRIQUEZ, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "41".

43. That on the said date, January 15, 2013, the defendants, acting jointly and severally, assaulted, battered, humiliated, unlawfully had arrested, unlawfully detained, falsely incarcerated, maliciously prosecuted the plaintiff, EDDY HENRIQUEZ, and deprived him of his civil rights.

44. That the defendants, and that of its agents, servants and employees, violated the civil rights of plaintiff, EDDY HENRIQUEZ, guaranteed by the Due Process Clauses of the 5th and 14th amendments to the Constitution of the United States, the Equal Protection Clause, 42 U.S.C. 1983 and 1988, the Constitution of the State of New York.

45. That the intentional actions of the defendants, each of them, their agents, servants and/or employees, occurred from January 15, 2013, the date of arrest, through and continuing until the termination of the criminal proceedings.

46. That by reason of the foregoing, the plaintiff, EDDY HENRIQUEZ, was caused to be severely injured and suffer other damages.

47. That the resulting injuries to the plaintiff, EDDY HENRIQUEZ, were due solely by reason of the intentional acts of the defendants, and each of them, their agents, servants and/or employees, all to his damage in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A TENTH CAUSE OF ACTION

48. The plaintiff, ELANNY FLORES-VARGAS, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "47".

49. That on the said date, January 15, 2013, the defendants, acting jointly and severally, assaulted, battered, humiliated, unlawfully had arrested, unlawfully detained, falsely incarcerated, maliciously prosecuted the plaintiff, ELANNY FLORES-VARGAS, and deprived her of her civil rights.

50. That the defendants, and that of its agents, servants and employees, violated the civil rights of plaintiff, ELANNY FLORES-VARGAS, guaranteed by the Due Process Clauses of the 5th and 14th amendments to the Constitution of the United States, the Equal Protection Clause, 42 U.S.C. 1983 and 1988, the Constitution of the State of New York.

51. That the intentional actions of the defendants, each of them, their agents, servants and/or employees, occurred from January 15, 2013, the date of arrest, through and continuing until the termination of the criminal proceedings.

52. That by reason of the foregoing, the plaintiff, ELANNY FLORES-VARGAS, was caused to be severely injured and suffer other damages.

53. That the resulting injuries to the plaintiff, ELANNY FLORES-VARGAS, were due solely by reason of the intentional acts of the defendants, and each of them, their agents, servants and/or employees, all to her damage in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A ELEVENTH CAUSE OF ACTION

54. The plaintiff, EDDY HENRIQUEZ, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "53".

55. On or about January 15, 2013, employees of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including defendant, POLICE OFFICER "BARROWS" Tax Registry No.951571 and defendant, POLICE OFFICER "VILLANEUVA", Tax Registry No. 949947, acting within the scope of their employment, and in the furtherance of the interest of the defendants, assaulted and battered the plaintiff, EDDY HENRIQUEZ.

56. That as a result of the aforesaid intentional acts of the defendants, the plaintiff, EDDY HENRIQUEZ, sustained loss of liberty, emotional harm and grievous injury to various parts of his body; that plaintiff, EDDY HENRIQUEZ, has suffered and will continue to suffer great pain and anguish of body and mind; that plaintiff, EDDY HENRIQUEZ, has necessarily received medical care and attention for a long period of time, by reason of the injuries sustained by him; that plaintiff, EDDY HENRIQUEZ, has, is and will continue to receive medical treatment and medicines for which expenses have, are and will continue to be incurred in an effort to cure and treat his said injuries; that plaintiff, EDDY HENRIQUEZ, has been rendered unable to attend to his usual activities as he had theretofore done, and his injuries are of a permanent, protracted and disabling nature.

57. That as a consequence of the wrongful acts of the defendants, the plaintiff, EDDY HENRIQUEZ, suffered damage in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR AN TWELFTH CAUSE OF ACTION

58. The plaintiff, ELANNY FLORES-VARGAS, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "57".

59. On or about January 15, 2013, employees of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including defendant, POLICE OFFICER "BARROWS" Tax Registry No.951571 and defendant, POLICE OFFICER "VILLANEUVA", Tax Registry No. 949947, acting within the scope of their employment, and in the furtherance of the interest of the defendants, assaulted and battered the plaintiff, ELANNY FLORES-VARGAS.

60. That as a result of the aforesaid intentional acts of the defendants, the plaintiff, ELANNY FLORES-VARGAS, sustained loss of liberty, emotional harm and grievous injury to various parts of her body; that plaintiff, ELANNY FLORES-VARGAS, has suffered and will continue to suffer great pain and anguish of body and mind; that plaintiff, ELANNY FLORES-VARGAS, has necessarily received medical care and attention for a long period of time, by reason of the injuries sustained by her; that plaintiff, ELANNY FLORES-VARGAS, has, is and will continue to receive medical treatment and medicines for which expenses have, are and will continue to be incurred in an effort to cure and treat her said injuries; that plaintiff, ELANNY FLORES-VARGAS,

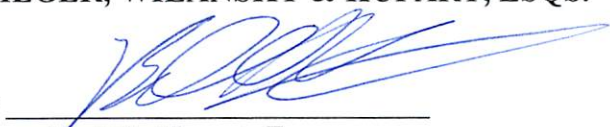
has been rendered unable to attend to her usual activities as she had theretofore done, and her injuries are of a permanent, protracted and disabling nature.

61. That as a consequence of the wrongful acts of the defendants, the plaintiff, ELANNY FLORES-VARGAS, suffered damage in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

WHEREFORE, the plaintiffs demands judgment against the defendants on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Tenth, Eleventh, and Twelfth Causes of Action in amounts in excess of all lower courts that would otherwise have jurisdiction herein, together with the costs and disbursements of this action.

Dated: Bronx, New York
January 7, 2014

Yours, etc.,
KRIEGER, WILANSKY & HUPART, ESQS.

By: 
Brett R. Hupart, Esq.

Attorneys for Plaintiff
5602 Broadway
Bronx, New York 10463
(718) 432-0500

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK)

COUNTY OF Bronx) ss:

Eddy Henriquez, being duly sworn deposes and says:

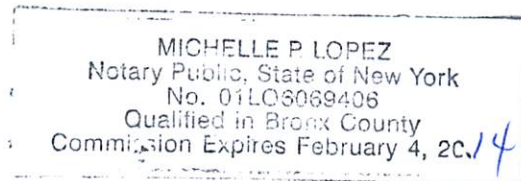
I am a Plaintiff in the action herein: I have read the foregoing Summons & Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: Bronx, New York
January 7, 2014

X Eddy Henriquez

Subscribed and sworn to before me
this 7th day of January, 2014

[Signature]
NOTARY PUBLIC



VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK)

COUNTY OF Bronx).ss:

Elanny Flores-Vazquez, being duly sworn deposes and says:

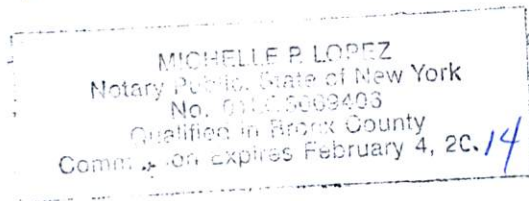
I am a Plaintiff in the action herein: I have read the foregoing
Summons & Complaint and know the contents thereof, and the same are true
to my knowledge, except those matters therein which are stated to be alleged upon information and
belief, and as to those matters I believe them to be true. My belief as to those matters therein not
stated upon knowledge, is based upon facts, records, and other pertinent information contained in
my personal files.

Dated: Bronx, New York
January 7, 2014

X Elanny Flores-Vazquez

Subscribed and sworn to before me
this 7th day of January, 2014

[Signature]
NOTARY PUBLIC



Index No.

Year 2014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

EDDY HENRIQUEZ and
ELANNY FLORES-VARGAS,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
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"BARROWS" Tax Registry No. 951571 and POLICE
OFFICE "VILLANEUVA", Tax Registry No. 949947,

Defendants.

SUMMONS & VERIFIED COMPLAINT

KRIEGER, WILANSKY & HUPART, ESQS.

Attorneys at Law
Attorneys for Plaintiff
5602 Broadway
Bronx, New York 10463
(718) 432 - 0500

To:

Dated:

Attorneys for

PLEASE TAKE NOTICE

Notice
of
Entry

that the within is a true copy of
within named Court on

entered in the office of the clerk of the

Notice
of
Settlement

That an Order of which the within is a true copy will be presented for settlement to
the Hon. one of the judges of the within named Court, at on , at o'clock

Dated: Bronx, New York

KRIEGER, WILANSKY & HUPART, ESQS.
Attorneys for Plaintiff
5602 Broadway-2nd Floor
Bronx, New York 10463

TO: